24TRCV04438 24TRCV04438

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 24TRCV04438 Hearing Date: September 3, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday
– September 3, 2026

Department M Calendar No.

PROCEEDINGS

Sherine El Hag, et al. v. GGE
Management, LLC, et al.

24TRCV04338

1. Electrolux Consumer Products, Inc.’s Motion to Sever

TENTATIVE RULING

Electrolux
Consumer Products, Inc.’s Motion to Sever is granted.

Background

Plaintiffs filed the Complaint on December 19, 2024. Plaintiffs allege the following facts. Plaintiffs were tenants on Defendants’ real property and experienced numerous habitability problems that were not repaired. On October 11, 2024, a fire occurred causing Plaintiffs to vacate. Defendants failed to provide relocation assistance and refused to refund the October rent or security deposit.

Defendant Persephones, LLC filed a Cross-Complaint on January 7, 2026 and a First Amended Cross-Complaint on March 6, 2026 for indemnity and contribution. Moving Cross-Defendant Electrolux is identified as a manufacturer of a defective oven.

Motion to Sever

Code Civ. Proc., § 598 states:

"The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time. Where trial of the issue of liability as to all causes of action precedes the trial of other issues or parts thereof, and the decision of the court, or the verdict of the jury upon such issue so tried is in favor of any party on whom liability is sought to be imposed, judgment in favor of such party shall thereupon be entered and no trial of other issues in the action as against such party shall be had unless such judgment shall be reversed upon appeal or otherwise set aside or vacated.

If the decision of the court, or the verdict of the jury upon the issue of liability so tried shall be against any party on whom liability is sought to be imposed, or if the decision of the court or the verdict of the jury upon any other issue or part thereof so tried does not result in a judgment being entered pursuant to this chapter, then the trial of the other issues or parts thereof shall thereafter be had at such time, and if a jury trial, before the same or another jury, as ordered by the court either upon its own motion or upon the motion of any party, and judgment shall be entered in the same manner and with the same effect as if all the issues in the case had been tried at one time."

Code Civ. Proc., § 1048(b) states: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.”

Cross-Defendant Electrolux (“ECP”) moves “for an order severing and separately trying the claims asserted by plaintiffs against defendants GGE Management, LLC (“GGE”) and PERSEPHONES LLC, from the cross-claims asserted by Cross-Complainants GGE and PERSEPHONES against DISCOUNT APPLIANCE GUYS (“DAG”) and ECP.” (Notice of Motion, p. 2, lines 5-8).

Cross-Defendant moves on the grounds that “the Complaint and Cross-Complaint involve distinct legal theories, parties, and evidentiary issues. Plaintiffs’ claims are based on alleged habitability violations and concern GGE’s and PERSEPHONES’s alleged duties to maintain habitable premises and adequately address tenant complaints. By contrast, the Cross-Complaint involves separate product liability and indemnification claims premised upon allegations that the subject oven contained a manufacturing defect. Trying these claims together would create a substantial risk of juror confusion regarding the proper allocation of liability and would unnecessarily complicate the presentation of evidence and overall trial management.” (Notice of Motion, p. 2, lines 10-17).

Cross-Defendant sufficiently established that the factors of expedition, economy, and efficiency of handling the litigation are fostered by bifurcating the Complaint and the Cross-Complaint. While clearly there may be factual issues that overlap, the legal theories involved in the Cross-Complaint, which deal with products liability, are distinct from the legal theories presented in the Complaint which involve a tenant/landlord dispute.

Further, GGE Management, LLC and Persephones, LLC’s First Amended Cross-Complaint was filed on March 6, 2026. However, Cross-Complainant had difficulty serving Cross-Defendant Discount Appliance Guys (“DAG”). On June 8, 2026, the Court granted Cross-Complainants’ application to serve this entity via the California Secretary of State. On July 29, 2026, Cross-Complainants filed a proof of service of this entity. Cross-Defendant DAG has yet to file an

Answer to the First Amended Cross-Complaint.

Thus, the First Amended Cross-Complaint is not at issue at this point. The trial date is October 6, 2026. Usually, the remedy for this type of situation would be to continue the trial date. However, in this instance, Plaintiffs' motion for a trial preference was granted, and, thus, a trial continuance is not available. Proceeding on the trial of the First Amended Cross-Complaint on October 6, 2026 with a Cross-Defendant not having made an appearance as of this date would not be practical and would cause prejudice to the moving party.

Thus, Cross-Defendant's Motion to Sever is granted.

Cross-Defendant is ordered to give notice of this ruling.